

	on January 23, 2023. (See ROAs 22 and 26.) Although the Court entered the order on January 23, 2026, there is nothing showing that the order was served on either counsel. The Court's file shows that, on February 13, 2026, plaintiff filed requests for defaults of the defendants with a declaration by plaintiff's counsel. (ROAs 29 and 31.) However, the file also shows that defendants tried to file an answer on that same day, i.e., on February 13, 2026, but the answer was rejected by the Clerk's Office because the default had already been entered. (See ROAs 21, 22, and 23.) The Court's file further shows that counsel for both parties appeared at the case management conference on February 17, 2026, and that defense counsel was unaware that second defaults were entered against defendants on February 13, 2026. (See Minute Order of February 17, 2026, ROA 34.) The file shows that plaintiff's counsel objected to the Court's vacating the defaults at the case management conference and the Court advised counsel that a notice to set aside the defaults was necessary to have them set aside unless counsel entered into a stipulation. The file also shows that the Court ordered counsel for the parties to meet and confer after the hearing. These facts support setting aside the second defaults of the defendants under Code Civ. Proc. § 473(b) for inadvertence or excusable neglect. The court vacates the 7/13/26 default prove up. The court sets a CMC for 8/10/26 at 8:45am in Dept. C24.
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208	<i>Cots vs. Cats</i>	Noah Green, Esq.'s (Moving Counsel) motion to be relieved as counsel for Plaintiff Donald Cots is GRANTED. The Court will interlineate the new hearing date on the OSC into the proposed order. Moving Counsel shall serve the signed order on Plaintiff and all parties that have appeared. Moving Counsel will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon Plaintiff and all other parties. The court continues the OSC re: dismissal of complaint for failure to serve defendant from 7/13/26 to 10/12/26 at 8:45am in Dept. C24. Moving Counsel shall give notice.
209	<i>Briggs & Alexander, A Professional Law Corporation vs. The Dodell Law Corporation</i>	The general demurrer of cross-defendant Briggs & Alexander, APLC, to the first cause of action in the cross-complaint of cross-complainants The Dodell Law Corporation and Herbert L. Dodell is SUSTAINED with 20 days' leave to amend. The general and special demurrers to the third cause of action in the cross-complaint is OVERRULED. The propriety of a cross-complaint against a stakeholder in an interpleader action is somewhat in dispute. (See, e.g., Weil & Brown, California Practice Guide: Civil Procedure Before Trial (TRG 2026 update), Interpleader, § 2:491.1, and CEB, Civil Procedure Before Trial (2026 update), Interpleader, § 28.30.) Here, the cross-complaint relates to the funds held in the escrow account by moving cross-defendant in its role as escrow holder. (See cross-complaint at ¶¶ 14 and 15.) The cross-complaint further alleges